

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 19, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV409948	Stephen Lee v. Citibank, N.A.	Click LINE 1 or scroll down for ruling.
Line 2	24CV440131	Jose Manuel Ruelas v. Alikssa Adilene Flores et al.	Defendant and cross-complainant Innovation Outdoor Improvement, Inc.'s motion to compel initial responses to form interrogatories and requests for production, against cross-defendants Aritzy Jacqueline Lara Martinez, El Borracho Sports Bar & Grill, and Grasshopper Builders, Inc. Notice is proper. Court default was entered against all cross-defendants in December 2025 after they failed to answer the cross-complaint by the deadline set by the court's July 2025 order vacating earlier court defaults. "The entry of a default cuts off the right to file pleadings and motions, and the right to notices and the service of pleadings." (<i>Steven M. Garber & Associates v. Eskandarian</i> (2007) 150 Cal.App.4th 813, 823.) Cross-defendants have not moved to set aside default. The court therefore has not considered their opposition (or the unauthorized supplemental declaration) to the instant discovery motion. Cross-defendants have not responded to either discovery request. The motion is GRANTED. (Code Civ. Proc., §§ 2030.290, 2031.300.) Cross-defendants Aritzy Jacqueline Lara Martinez, El Borracho Sports Bar & Grill, and Grasshopper Builders, Inc., are ordered to serve code-compliant, objection-free responses to the requested discovery no later than June 23, 2026. The court awards sanctions jointly and severally against cross-defendants Aritzy Jacqueline Lara Martinez, El Borracho Sports Bar & Grill, and Grasshopper Builders, Inc., in the amount of \$765 (consisting of the \$65 motion filing fee, \$600 in attorney fees (two hours at \$300/hour), and \$100 in paralegal time (one hour at \$100/hour)). The court will prepare the order.

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 19, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 3	24CV440131	Jose Manuel Ruelas v. Alikssa Adilene Flores et al.	Defendant and cross-complainant Innovation Outdoor Improvement, Inc.'s motion to compel and to have deemed admitted requests for admission, against plaintiff and cross-defendant Jose Manuel Ruelas. Notice is proper. Court default was entered against all cross-defendants in December 2025 after they failed to answer the cross-complaint by the deadline set by the court's July 2025 order vacating earlier court defaults. "The entry of a default cuts off the right to file pleadings and motions, and the right to notices and the service of pleadings." (<i>Steven M. Garber & Associates v. Eskandarian</i> (2007) 150 Cal.App.4th 813, 823.) Ruelas has not moved to set aside default. Ruelas has apparently responded to the requests for admission. Given that tardy response, the instant motion is DENIED AS MOOT. But the court finds sanctions appropriate, imposed against Jose Manuel Ruelas in the amount of \$765 (consisting of the \$65 motion filing fee, \$600 in attorney fees (two hours at \$300/hour), and \$100 in paralegal time (one hour at \$100/hour)). The court will prepare the order.
Line 4	23CV425319	American Express National Bank v. Lin Tian	Plaintiff American Express National Bank's motion to enter judgment by stipulation. (Code Civ. Proc., § 664.6.) Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2024, under which defendant Lin Tian agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates defendant failed to make payments. On good cause shown, the motion is GRANTED. Moving party to submit proposed order and proposed judgment, indicating damages of \$37,382.62 and costs of \$599.29.